

Kannu Lal v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 9 March 2010 · Writ-C No. 11144 of 2010 · **Writ dismissed; petitioner relegated to Supply Code statutory bill remedy.**

HEADNOTE

Where the U.P. Electricity Supply Code, 2005 affords a statutory remedy to challenge an electricity bill, the High Court will not quash the bill in writ jurisdiction or mandamus decision of a representation not referable to any statutory provision.

FACTUAL SUMMARY

Kannu Lal petitioned the Allahabad High Court to quash an electricity bill/notice dated 19 February 2008 issued by the State electricity authorities. He alleged the bill was incorrect and raised on a load never sanctioned to him. Counsel also sought a direction that his representation be decided. The Division Bench heard the petitioner and disposed of the writ the same day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

statutory remedy against electricity bill

HOLDING

A consumer disputing an electricity bill must avail the statutory remedy under the U.P. Electricity Supply Code, 2005. The writ court will neither quash the bill nor direct decision of a representation that is not referable to any statutory provision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 19 FEBRUARY 2008 BILL AND WHETHER THE BILLED LOAD WAS SANCTIONED

Merits left to the statutory Supply Code remedy. ¶ 1